

Sri Dhandapani vs Smt Sudharani on 6 December, 2023

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NC: 2023:KHC:44277
CRL.P No. 3814 of 2021

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 6TH DAY OF DECEMBER, 2023

BEFORE

THE HON'BLE MR JUSTICE R. NATARAJ
CRIMINAL PETITION NO. 3814 OF 2021

BETWEEN:

SRI. DHANDAPANI
S/O MARIMUTTU,
AGED ABOUT 37 YEARS,
RESIDING AT GOVINDAPADI,
KAVERIPURAM VILLAGE AND POST,
KOLATHUR (VIA) METTUR TALUK,
SALEM DISTRICT-636001.

...PETITIONER

(BY SRI. S.R. SREEPRASAD, ADVOCATE)

AND:

1. SMT. SUDHARANI
WIFE OF M. DHANDAPANI @ ARUNKUMAR
AGED ABOUT 34 YEARS
(NOW DIVORCED)

2. MR. RITHWID
S/O M. DHANDAPANI,
AGED ABOUT 4 YEARS,

REPRESENTED BY THE MOTHER

Digitally
signed by
SUMA

Location:
HIGH
COURT OF
KARNATAKA

AND NATURAL GUARDIAN
SMT. SUDHARANI (1ST RESPONDENT)

BOTH RESIDENTS OF
HEBBASURU VILLAGE
CHANDRAKAVADI HOBLI,
CHAMRAJANAGAR TALUK
AND DISTRICT-571313.

...RESPONDENTS

(BY SRI. KUMAR K.G., ADVOCATE FOR RESPONDENT NO.1;
RESPONDENT NO.2 IS MINOR REPRESENTED BY RESPONDENT NO.1)

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THIS CRL.P IS FILED UNDER SECTION 482 OF THE CODE OF CRIMINAL PROCEDURE, 1973 PRAYING TO QUASH THE ORDER DATED 18.11.2019 PASSED BY THE ADDITIONAL DISTRICT AND SESSIONS JUDGE, CHAMARAJANAGAR, SITTING AT KOLLEGALA IN CRL.R.P.NO.5007/2019 AND TO SET ASIDE THE ORDER DATED 07.01.2019 PASSED BY THE ADDITIONAL CIVIL JUDGE AND J.M.F.C., CHAMARAJANAGAR IN CRL.MISC.NO.124/2018, BY ALLOWING THIS CRL.P.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

The petitioner has challenged the order dated 07.01.2019 passed by the Additional Civil Judge and JMFC., Chamarajanagar, (henceforth referred to as the 'Trial Court') in Crl.Misc. No.124/2018 as well as the order dated 18.11.2019 passed by the Additional District and Sessions Judge, (henceforth referred to as the 'District Court') Chamarajanagara (Sitting at Kollegala), in Crl. R.P. No.5007/2019.

2. The short facts required for the purpose of considering this petition are that the petitioner is the ex- husband of the respondent No.1 and respondent No.2 is NC: 2023:KHC:44277 their son. Respondent Nos.1 and 2 herein initiated proceedings in Crl. Misc. No.124/2018 under Section 125 of the Code of Criminal Procedure, 1973 (for short, 'Cr.P.C') seeking maintenance from the petitioner herein. The Trial Court in terms of the order dated 07.01.2019, passed an interim order directing the petitioner herein to pay a sum of Rs.3,000/- per month from 05.12.2018 till the disposal of the case to each of the respondents herein. This order was challenged by the petitioner herein before the District Court in Crl. Revision Petition No.5007/2019 which was dismissed in terms of the order dated 18.11.2019.

3. Being aggrieved by the same, this petition is filed.

4. Learned counsel for the petitioner contends that the petitioner had initiated dissolution of the marriage of the respondent No.1 with the petitioner in a proceeding before the Sub-Court at Mettur in H.M.O.P No.87/2018 under Section 13(1)(ia) and (ib) of the Hindu Marriage NC: 2023:KHC:44277 Act, 1955 and that the said Court had granted a decree of dissolution of the marriage on 21.03.2019. He therefore, contends that the respondent No.1 is not entitled for any maintenance, as she had willfully deserted the petitioner without any reasonable cause. He, submits that until this order of the Sub-Court at Mettur is set aside, the respondent No.1 is not entitled to any maintenance under Section 125 of Cr.P.C in view of the sub-section (4) of Section 125 of Cr.P.C.

5. Per contra, the learned counsel for respondent No.1 contends that the decree of dissolution of marriage passed by the Sub-Court at Mettur was without notice to her and that the respondent No.1 has taken steps for setting aside that ex parte decree. He, therefore, contends that till the said petition is considered, respondent No.1 is entitled to be maintained by the petitioner.

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6. I have considered the submissions made by the learned counsel for the petitioner and the learned counsel for the respondent No.1.

7. It is not in dispute that this petition arises out of an interlocutory order passed by the Trial Court in Crl. Misc. No.124/2018 under Section 125 of the Cr.P.C. As rightly contended by the learned counsel for the petitioner, so long as the dissolution of the marriage of the respondent No.1 with the petitioner in terms of the decree dated 21.03.2019 passed by the Sub-Court at Mettur in H.M.O.P No.87/2018, is in force, respondent No.1 is not entitled to any maintenance, more particularly, in view of sub-section (4) of Section 125 of Cr.P.C. However, since the respondent No.1 has now taken steps for setting aside the ex parte decree of dissolution of marriage, until the said decree is set aside, the respondent No.1 may not be entitled to claim any maintenance. However, if the said decree is set aside, she may pursue her remedy before the Trial Court and in which event, the Trial Court may NC: 2023:KHC:44277 consider granting maintenance in accordance with law. The petitioner shall however continue to pay the maintenance to the respondent No.2 as directed by the Trial Court in terms of the order dated 07.01.2019 passed in Crl. Misc. No.124/2018 which was confirmed by the District Court in terms of the Order dated 18.11.2019 in Crl.R.P. No.5007/2019.

Accordingly, the petition is disposed off.

Sd/-

JUDGE SMA